

Section of Act.	How dealt with.
91	In subsection (1) "conditional or other" shall be omitted.
92	In subsection (1) "conditional or other" shall be omitted. In subsection (3) "then, if any person has been conditionally appointed to succeed to his office and is on the spot, the place of that member shall be supplied by that person, and if no person conditionally appointed to succeed to the office is on the spot" shall be omitted. In subsection (4) "conditionally or" shall be omitted.
115	At the end of subsection (1) the following shall be inserted:— "His Majesty may also by letters patent make such provision as may be deemed expedient for the exercise of the episcopal functions and ecclesiastical jurisdiction of the bishop during a vacancy of any of the said sees or the absence of the bishop thereof." At the end of subsection (2) the following shall be inserted:— "and as metropolitan shall have, enjoy, and exercise such ecclesiastical jurisdiction and functions as His Majesty may by letters patent direct. His Majesty may also by letters patent make such provision as may be deemed expedient for the exercise of such jurisdiction and functions during a vacancy of the See of Calcutta or the absence of the bishop."
118	In subsection (1) "and archdeacons" shall be omitted, and after "letters patent" there shall be inserted "and the archdeacons of those dioceses by their respective diocesan bishops."

CHAPTER 102.

An Act to amend the Old Age Pensions Acts, 1908 and 1911, and the Debtors Act, 1869.

[23rd December 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Rate of old age pension.

1. An old age pension under the Old Age Pensions Acts, 1908 and 1911, shall be at the rate set forth in the First Schedule to this Act instead of at the rate set forth in the Schedule to the Old Age Pensions Act, 1908 (in this Act referred to as "the Act of 1908").

8 Edw. 7. c. 40.

Amendment of statutory conditions as to means, nationality, and residence.

2.—(1) The following shall be substituted for paragraphs (2) and (3) of section two of the Act of 1908:—

"(2) The person must satisfy the pension authorities that for at least ten years up to the date of the receipt of

any sum on account of a pension he has been a British subject.

“(3) The person must satisfy the pension authorities that his yearly means as calculated under this Act do not exceed forty-nine pounds seventeen shillings and sixpence.”

(2) Paragraph (1) of section three of the Old Age Pensions Act, 1911 (in this Act referred to as “the Act of 1911”), which modifies the statutory condition as to nationality as respects a woman married to an alien, shall have effect as though all the words from “and that” to the end of the paragraph were omitted therefrom. 1 & 2 Geo. 5.
c. 16.

(3) The following shall be substituted for the words in paragraph (2) of section three of the Act of 1911 from the beginning of the paragraph down to the word “this provision” :—

“It shall be a statutory condition for the receipt of an old age pension by any person, that the person must satisfy the pension authorities, if he is a natural-born British subject, that he has, since attaining the age of fifty years, had his residence in the United Kingdom for an aggregate period of not less than twelve years, and if he is not a natural-born British subject, that he has had his residence in the United Kingdom for an aggregate period of twenty years :

“Provided that for the purpose of computing residence in the United Kingdom under this provision—”

3.—(1) The following shall be substituted for paragraph (a) of subsection (1) of section three of the Act of 1908 :— Amendment as
to disqualifica-
tions.

“(a) while he is an inmate of any workhouse or other poor-law institution :

Provided that a person who has become an inmate of any workhouse or other poor-law institution for the purpose of obtaining medical or surgical treatment shall not, during a period of three months from the date on which he becomes such an inmate if he so long continues to require such treatment, be disqualified on the ground only that he is such an inmate for receiving or continuing to receive an old age pension.”

(2) The provisions of paragraph (b) of subsection (1) of section three of the Act of 1908 (which disqualifies a person who has habitually failed to work according to his ability) shall cease to have effect.

(3) The provisions of subsection (2) of section three of the Act of 1908, as amended by subsection (2) of section four of the Act of 1911, so far as those provisions disqualify a person after the date on which he is released from prison, and subsection (3) of section four of the Act of 1911 (which imposes

61 & 62 Vict.
c. 60.

Calculation of
means.

a disqualification on persons convicted of offences under the Inebriates Act, 1898), shall cease to have effect.

4.—(1) Subsection (1) of section two of the Act of 1911 (which relates to the calculation of means) shall be amended as follows:—

(a) The yearly value of any such property as is mentioned in paragraph (a) of the said subsection (1) shall be calculated as follows, that is to say:—

(i) The first twenty-five pounds of the capital value of the said property shall be excluded; and

(ii) The yearly value of the next three hundred and seventy-five pounds of the capital value of the said property shall be taken to be one-twentieth part of the capital value; and

(iii) The yearly value of so much of the capital value of the said property as exceeds the sum of four hundred pounds shall be taken to be one-tenth part of the capital value:

(b) In calculating the income mentioned in paragraph (b) of the said subsection, no account shall be taken of any amounts received during a period of not more than three months in any year by a person or by the husband or wife of a person, as the case may be, under a medical certificate as sickness benefit from a friendly society or trade union, or under the National Insurance Act, 1911:

(c) No account shall be taken of the furniture and personal effects of a person whatever the value thereof may be:

(d) Where a husband is separated from his wife, any sum paid by him to her under a separation order shall be deducted in calculating his means.

(2) Subsection (2) of section two of the Act of 1911 shall have effect as if the following words were added at the end thereof: “and where either of the couple or the couple jointly is or are entitled to any property, each of them shall be deemed to be entitled to one half of that property.”

Pension not to be
taken into
account for
purposes of
Debtors Act.

32 & 33 Vict. c. 62.

Date of com-
mencement of
pension or of
increased rate
of pension.

5. Any sums received by any person by way of an old age pension shall not be included in calculating his means for the purpose of section five of the Debtors Act, 1869.

6.—(1) Where a pension is first allowed the pension shall commence to accrue, and where, by virtue of a decision on any question which has been raised, a pension becomes payable at an increased rate, the pension shall become payable at the increased rate on the first Friday after the date on which the claim for the pension is received by the pension officer or on which the notice of the question is received by the pension officer, as the case may be, or on the first Friday after the date on which the

claimant or the pensioner first becomes entitled to the pension or on which the pension first becomes payable at the increased rate, whichever is the later, or, if the later of those two dates is a Friday, on that Friday. •

(2) Where any general public holiday falls on a Friday, the Treasury may, if they think fit, direct that sums payable by way of old age pensions on that Friday shall be paid on some other day, whether earlier or later.

7. Regulations may be made under the Act of 1908 for enabling a local pension committee to appoint a person to exercise on behalf of any claimant or pensioner who is, by reason of any mental or other incapacity unable to act, any right to which that claimant or pensioner may be entitled under the Acts of 1908 and 1911, as amended by this Act, and to authorise any person so appointed to receive on behalf and for the benefit of the claimant or pensioner any sums payable by way of old age pension.

Provision for enabling claims to be made on behalf of persons suffering from mental or other incapacity.

8. If any person who is in receipt of an old age pension at the time of the commencement of this Act or whose claim to an old age pension has been provisionally allowed before that time, claims that the rate of his pension should be increased so as to be in accordance with the scale contained in the First Schedule to this Act, the claim shall, instead of being considered and determined in manner provided by section seven of the Act of 1908, be considered and determined by the pension officer :

Determination of claims by existing pensioners to have rate of pension increased.

Provided that, if the claimant is aggrieved by the decision of the pension officer, he may appeal against the decision to the local pension committee, who shall consider the case and give their decision thereon in the same manner as if the decision of the pension officer were the report of a pension officer on a claim referred to him for report and inquiry under the said section seven.

9.—(1) Where the means of any person who is in receipt of an old age pension at the time of the commencement of this Act would be greater if calculated in accordance with the provisions of the Acts of 1908 and 1911, as amended by this Act, than they would be if calculated in accordance with the provisions of those Acts as not so amended, the means of that person shall, for the purposes of the Acts of 1908 and 1911 and this Act, continue to be calculated as if this Act had not passed.

Saving for existing pensioners.

(2) The provisions of this Act modifying in respect of residence the statutory conditions for the receipt of an old age pension shall not operate so as to disentitle any person who is in receipt of an old age pension at the time of the commencement of this Act from continuing to receive the pension.

Short title,
commence-
ment, and
repeal.

10.—(1) This Act may be cited as the *Old Age Pensions Act, 1919*, and shall be construed as one with the *Old Age Pensions Acts, 1908 and 1911*, and those Acts and this Act may be cited together as the *Old Age Pensions Acts, 1908 to 1919*.

(2) This Act shall come into operation on the second day of January, nineteen hundred and twenty.

(3) The enactments mentioned in the Second Schedule to this Act are hereby repealed to the extent specified in the third column of that schedule.

SCHEDULES.

FIRST SCHEDULE.

RATE OF PENSION.

Means of Claimant or Pensioner.	Rate of Pension per Week.
Where the yearly means of the claimant or pensioner as calculated under the <i>Old Age Pensions Acts, 1908 and 1911</i> , as amended by this Act—	
do not exceed £26 5s.	10s.
exceed £26 5s., but do not exceed £31 10s.	8s.
„ £31 10s., „ „ £36 15s.	6s.
„ £36 15s., „ „ £42	4s.
„ £42, „ „ £47 5s.	2s.
„ £47 5s., „ „ £49 17s. 6d.	1s.
„ £49 17s. 6d.	No pension.

Section 10.

SECOND SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
8 Edw. 7. c. 40.	<i>Old Age Pensions Act, 1908.</i>	Subsection (2) of section one; paragraph (b) of subsection (1) of section three and in subsection (2) of that section the words “and for a further period of ten years after the date on which he is released from prison”; subsection (2) of section five; Schedule.
1 & 2 Geo. 5. c. 16.	<i>Old Age Pensions Act, 1911.</i>	In paragraph (1) of section three the words from “and that” to the end of the paragraph; section four.